

1	Goguen vs. Hoag Memorial Hospital Presbyterian 30-2025-01536826	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Demurrer</u> Defendants Salman N.M. Okour, M.D.'s and Francis Chang, M.D.'s Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 4th Cause of Action. If Plaintiffs Kyle Goguen and Lyndsay Goguen do not amend the Complaint for Damages within the period of time stated above, Defendants Salman N.M. Okour, M.D. and Francis Chang, M.D. shall file an answer or other pleading in response to the remaining causes of action of the Complaint for Damages within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W.</i>
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		<i>Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) In addition, the “allegations must be liberally construed, with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) Nonetheless, it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>4th Cause of Action</u> <i>Thing v. La Chusa</i> (1989) 48 Cal.3d 644 controls in this case. The cases cited by Plaintiffs have either been criticized by <i>Thing v. La Chusa</i>, such as <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600, or predate <i>Thing v. La Chusa</i>. such as <i>Tarasoff v. Regents of University of California</i> (1976) 17 Cal.3d 425, <i>Myers v. Quesenberry</i> (1983) 144 Cal.App.3d 888, <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600, <i>Hedlund v. Superior Court</i> (1983) 34 Cal.3d 695, and <i>Molien v. Kaiser Foundation Hospitals</i> (1980) 27 Cal.3d 916. The Complaint fails to allege that Kyle Goguen was “present at the scene of the injury-producing event at the time it occurs
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		and is then aware that it is causing injury to the victim.” (<i>Thing v. La Chusa, supra</i>, 48 Cal.3d at p. 702), such that he “contemporaneously and sensorily perceived” the event. The Plaintiffs cite to several cases that were decided after <i>Thing v. La Chusa</i>, such as <i>Reisner v. Regents of University of California</i> (1995) 31 Cal.App.4th 1195; <i>Ewing v. Goldstein</i> (2004) 120 Cal.App.4th 807; <i>Williams v. Superior Court</i> (1994) 30 Cal.App.4th 318, and <i>Gutierrez v. Tostado</i> (2025) 18 Cal.5th 222 However, all of these cases are distinguishable and do not apply here. Defendants Salman N.M. Okour, M.D. and Francis Chang, M.D. shall give notice of this ruling.
2	Bevli vs. Desai 30-2024-01413516	<u>Demurrer and Motion to Strike</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.
3	April Parker Foundation, Inc. vs. The Orange County Health Authority 30-2026-01553304	<u>Motion to Be Relieved as Counsel</u> There is no written tentative ruling at this time. The court is concerned whether Petitioner April Parker Foundation, Inc. will be prejudiced by the withdrawal of counsel because its opening brief is due in approximately 3 ½ weeks.
4	Solaia Capital Management LLC vs. Kairos Manford Private Equity Fund I LP 30-2021-01233896	<u>Motion to Strike or Tax Costs</u> There is no written tentative ruling at this time. The court will hear from the parties or their counsel at oral argument.